

In T.1506/13 the board, referring to T.948/02, summarised that a deletion of genes from a **list of specific genes** was allowable if it fulfils **two conditions**: First, the deletion must not result in singling out any hitherto not specifically mentioned individual compound or group of compounds, but maintains the remaining subject-matter as a generic group of compounds differing from the original group only by its smaller size. Second, the deletion does not lead to a particular combination of a specific meaning which was not disclosed originally, i.e. it does not generate another invention, or in other words it merely restricts the required protection but does not provide any technical contribution to the originally disclosed subject-matter.

In T.98/09, which concerned the "singling out" of combinations of active ingredients not originally disclosed from lists, the board held that, contrary to the appellant's view, a deletion from a list could also constitute an inadmissible extension if the singling out of one individual ingredient led to a selection of combinations which, even if conceivably covered by the application as filed, had not been specifically disclosed. It was the boards' settled case law that such a selection is to be regarded as an inadmissible extension and so as an infringement of Art. 123(2) EPC (see e.g. T.727/00 and T.686/99). The case at issue concerned two lists (six elements and 47 elements). The applicant sought to individualise one of the lists to one element. The board held that this selection was contrary to Art. 123(2) EPC. For a similar case, in which the board found that the deletion of elements of two lists led to an unallowable selection, see T.1808/08.

In T.10/97 not all the compounds listed in the original claim were included in amended claim 1. However, since the claimed group of compounds was obtained not by restricting an originally disclosed generic definition of a substituent in a generic formula to a specific one selected from worked examples, but by **deleting some members from a list** of individualised equally useful compounds in order to improve the chances of patentability over the available prior art, the board found that such deletions must be considered admissible in accordance with the case law of the boards of appeal (see T.393/91). For the remaining compounds, no particular technical effect was either disclosed or alleged.

In T.783/09 the board referred to T.10/97. All forty-four combinations resulting from the combination of the elements of the two lists (one list with two elements, the other list with 22 elements) were directly and unambiguously disclosed. However, a further issue was whether or not the claiming of only three of the forty-four combinations disclosed extended the content of the application as filed in an unallowable way. The forty-four combinations were referred to as "very preferred embodiments"; by this statement the skilled person was taught that each of the forty-four combinations had the same quality, i.e. they were all very preferred combinations in the context of the invention. Nothing else was derivable from the remainder of the application, i.e. a particular quality, for example a particular technical effect, was attributed neither to the three combinations of claim 1 nor to the remaining forty-one. Hence, the group of claim 1 was to be considered as the result of the **deletion of forty-one elements from a list of forty-four qualitatively equal elements** (see T.10/97). In summary, the subject-matter of claim 1 complied with the requirements of Art. 123(2) EPC.

In T.1075/12 the patent proprietor restricted the definitions of groups to lists of specific substituents. The board held that the more precise definitions of the groups did not result in a particular combination of specific meanings of the respective groups being singled out, namely no particular structural feature of the compounds concerned was now claimed which was not disclosed originally. The board distinguished its case from T.859/04 and T.801/02, in which more than one variable in the respective chemical formulae had been individualised.

1.6.4 Combination of original independent claim with features from a plurality of dependent claims referring back to the independent claim separately – "US style" dependencies

In T.1362/15 the board had to decide whether Art. 123(2) EPC allowed incorporating the features of a plurality of dependent claims into an independent claim in a situation in which the application as originally filed included a claims set with a "US-style" dependency (i.e. with the relevant dependent claims separately referring back to the independent claim) and an embodiment in which the features of the independent claim and the dependent claims were shown in combination – albeit together with even more features. The appellant had asked for a referral of questions relating to this situation to the Enlarged Board of Appeal and had pointed to allegedly diverging case law. The board did not consider this referral to be justified for, inter alia, the following reason: the Enlarged Board had already clearly defined the necessary and sufficient criteria to assess the requirements of Art. 123(2) EPC in, inter alia, G 2/98 (OJ 2001, 413) and G 2/10 (OJ 2012, 376), i.e. that the skilled person must be able to derive the claimed subject-matter directly and unambiguously, using common general knowledge, and, seen objectively and relative to the date of filing, from the original application as a whole. These applied irrespective of the particular dependency structure of the originally filed claims. The board analysed the allegedly diverging decisions T.2619/11 and T.1414/11 and came to the conclusion that both decisions relied on the same criteria and did not contradict each other. Regarding the "US-style" claim dependency, the board noted that there was no insurmountable limitation regarding the possible combinations of features in the claims of a US application under 35 U.S.C 112. The board refused the request for referral and decided that the subject-matter at issue extended beyond the content of the application as originally filed.

In T.895/18 the appellant (patentee) argued that the application was typical of many applications relating to new and inventive compositions which were drafted in the "USA style" and should therefore be read accordingly as disclosing also combinations of features of dependent claims that were not dependent on each other. The board rejected this approach, because there was no legal basis in the EPC for applying the requirements of Art. 123(2) EPC differently in view of a deliberately selected drafting style.

1.7. Disclaimers

1.7.1 Definition

The term "disclaimer" is used in the decisions G 1/03 (identical to G 2/03) (OJ 2004, 413, 448), G 2/10 (OJ 2012, 376) and G 1/16 (OJ 2018, A70) as meaning an

amendment to a claim resulting in the incorporation therein of a "negative" technical feature, typically excluding from a general feature specific embodiments or areas.

Furthermore G 1/16 concurred with decision T 1870/08, that a disclaimer is only a proper disclaimer if the remaining legal subject-matter is **less** than that of the unamended claim. If any subject-matter can be identified which falls within the scope of the claim after amendment by the proposed disclaimer, but which did not do so before the amendment, the disclaimer is improper and, as a consequence of this, unallowable under Art. 123(2) EPC.

The board in T 1870/08 provided the example of a negative formulation removing a restricting feature: While this formulation may look like a disclaimer, it may in fact extend the legal scope of protection.

The term "**undisclosed disclaimer**" relates to the situation in which neither the disclaimer itself nor the subject-matter excluded by it have been disclosed in the application as filed. The term "**disclosed disclaimer**" relates to the situation in which the disclaimer itself might not have been disclosed in the application as filed, but the subject-matter excluded by it has a basis in the application as filed, e.g. in an embodiment. Thus, undisclosed disclaimers and disclosed disclaimers can be distinguished according to whether the subject-matter on which the respective disclaimer is based is explicitly or implicitly, directly and unambiguously, disclosed to the skilled person using common general knowledge, in the application as filed (G 1/16).

1.7.2 Standards for examining disclosed and undisclosed disclaimers

In G 1/16 (OJ 2018, A70) the Enlarged Board considered that the choice of the proper test for assessing the allowability of any disclaimer is determined by the fundamental distinction, in terms of their legal nature, between disclosed disclaimers and undisclosed disclaimers. That distinction necessitates providing **for each of the two classes of disclaimer a single specific test** for assessing whether the introduction of a given disclaimer is in compliance with Art. 123(2) EPC. Therefore, for undisclosed disclaimers the proper test is whether the criteria of G 1/03 (OJ 2004, 413) are fulfilled, and for disclosed disclaimers the proper test is the gold standard disclosure test of G 2/10 (OJ 2012, 376).

With regard to the admissibility of disclaimers, reference should also be made to chapter II.D.3.1.2.

a) Principles established in G 1/03 and G 2/03 for undisclosed disclaimers

The Enlarged Board of Appeal held in G 1/03 and G 2/03 (OJ 2004, 413 and 448) concerning **undisclosed** disclaimers that an amendment to a claim by the introduction of a disclaimer may not be refused under Art. 123(2) EPC 1973 for the sole reason that neither the disclaimer nor the subject-matter excluded by it from the scope of the claim have a basis in the application as filed. It considered that the following criteria were to be

applied for assessing the allowability of a disclaimer which was not disclosed in the application as filed:

A disclaimer may be allowable in order to:

- restore novelty by delimiting a claim against state of the art under Art. 54(3) and (4) EPC 1973;
- restore novelty by delimiting a claim against an accidental anticipation under Art. 54(2) EPC 1973; an anticipation is accidental if it is so unrelated to and remote from the claimed invention that the person skilled in the art would never have taken it into consideration when making the invention; and
- disclaim subject-matter which, under Art. 52 to 57 EPC 1973, is excluded from patentability for non-technical reasons.

In addition, a disclaimer should not remove more than is necessary either to restore novelty or to disclaim subject-matter excluded from patentability for non-technical reasons. On the other hand, a disclaimer which is or becomes relevant for the assessment of inventive step or sufficiency of disclosure adds subject-matter contrary to Art. 123(2) EPC 1973. And a claim containing a disclaimer must meet the requirements of clarity and conciseness of Art. 84 EPC 1973.

In G 1/03 (and G 2/03), the Enlarged Board, having regard to the law established by it in relation to disclaimers, expressly identified those board decisions which should no longer be applied. Thus, the Enlarged Board stated that the isolated decisions T 170/87 and T 313/86 were not to be followed, whilst also criticising T 323/97 in the light of the new law applicable.

b) Principles established in G 2/10 for disclosed disclaimers

The Enlarged Board in G 2/10 found that, subsequent to decision G 1/03 (and G 2/03), different opinions had been expressed in the jurisprudence of the boards of appeal on whether decision G 1/03 related to the disclaiming of embodiments which were **disclosed** as part of the invention in the application as filed or whether in that situation the jurisprudence as previously established following decision T 4/80 (OJ 1982, 149) continued to apply (see G 1/07, OJ 2011, 134, point 4.2.3 of the Reasons). In G 2/10 the Enlarged Board reformulated the question referred to it, stating that the question was construed as intending to ask whether an amendment to a claim by the introduction of a disclaimer infringes Art. 123(2) EPC if the subject-matter of the disclaimer was disclosed as an embodiment of the invention in the application as filed.

The Enlarged Board in G 2/10 stressed that decision G 1/03 did not support the conclusion drawn by T 1050/99 that G 1/03 also related to disclaimers for disclosed subject-matter. Further, in G 1/03 it was not decided that an undisclosed disclaimer would be always allowable under Art. 123(2) EPC. The wording of its answer, reading "a disclaimer may be allowable", indicated that with the criteria established in this answer the Enlarged Board in

G 1/03 did indeed not intend to give a complete definition of when a disclaimer violates Art. 123(2) EPC.

The Enlarged Board stated that neither decision G 1/93 nor decision G 1/03 intended to modify the general definition of the requirements of Art. 123(2) EPC established in opinion G 3/89 (OJ 1993, 117) and decision G 11/91 (OJ 1993, 125), which definition has become the generally accepted or "gold standard" for assessing any amendment for its compliance with Art. 123(2) EPC. As to the criteria to be applied, the principle that any amendment to an application or a patent, and in particular to a claim, must fulfil the requirements of Art. 123(2) EPC also applies to an amendment limiting the claim by disclaiming disclosed subject-matter. Therefore, as is the case for any other amendment, the test for an amendment to a claim by disclaiming subject-matter disclosed as part of the invention in the application as filed must be that after the amendment the skilled person may not be presented with new technical information. Hence, disclaiming subject-matter disclosed in the application as filed can also infringe Art. 123(2) EPC if it results in **the skilled person being presented with technical information** which he would not derive directly and unambiguously, using common general knowledge, from the application as filed.

The point of reference for assessing an amended claim for its compatibility with Art. 123(2) EPC is the subject-matter which the claim contains after the amendment. In other words, it is the subject-matter remaining in the claim after the amendment. The test to be applied is whether the skilled person would, using common general knowledge, regard the **remaining claimed subject-matter as explicitly or implicitly, but directly and unambiguously, disclosed in the application as filed**. This test is the same as that applied when the allowability of a limitation of a claim by a positively defined feature is to be determined. The Enlarged Board found that no convincing reason had been advanced for not applying the principles developed in the context of Art. 123(2) EPC for the assessment of amendments to claims by the introduction of positive limiting features in the same manner to limitations of claims by disclaimers which disclaim subject-matter disclosed in the application as filed. The Enlarged Board stressed in its decision **the importance of applying a uniform concept of disclosure** (with reference to Art. 54, 87 and 123 EPC; see G 2/10, point 4.6 of the Reasons, citing G 1/03, OJ 2012, 436).

The Enlarged Board in G 2/10 (OJ 2012, 376) answered the two questions referred to it by interlocutory decision in T 1068/07 (OJ 2011, 256) as follows:

(1) An amendment to a claim by the introduction of a disclaimer disclaiming from it subject-matter disclosed in the application as filed infringes Art. 123(2) EPC if the subject-matter remaining in the claim after the introduction of the disclaimer is not, be it explicitly or implicitly, directly and unambiguously disclosed to the skilled person using common general knowledge, in the application as filed.

(2) Determining whether or not that is the case requires a technical assessment of the overall technical circumstances of the individual case under consideration, taking into account the nature and extent of the disclosure in the application as filed, the nature and extent of the disclaimed subject-matter and its relationship with the subject-matter remaining in the claim after the amendment.